

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 · City Opposition to Preliminary Injunction

Filed January 14, 2026

The City of Norvale opposes the Guild's motion for a preliminary injunction. Ordinance N-2025-18 is a content-neutral planning rule for recurring events that add compensated scheduled presentations to activity on municipal property. It does not permit review of an author's viewpoint, script, political affiliation, or position. It requires a short application, a uniform filing period and schedule of charges, and written reasons connecting any restrictive decision to documented crowd, traffic, or municipal-resource facts.

The Guild has not identified a speaker rejected because of a message, a completed application denied, or a late amendment that staff refused to consider. Its concerns about future additions and aggregate cost are understandable, but they do not establish that the ordinance probably violates the First Amendment. The City has significant responsibilities at Cedar Commons: keeping the service entrance usable, managing Market Lane loading and transit access, anticipating temporary audience movement, coordinating sanitation, and assigning limited employees across event dates.

The City's evidence does not depict the Guild as violent. Director Celia Voss and Lieutenant Rowan Pike acknowledge peaceful operations, two minor medical calls, and routine congestion. Their evidence shows why advance information remains useful even when an organizer has cooperated. A regulation need not await serious injury, and narrow tailoring does not require the least restrictive possible system. The motion should be denied. If the Court finds interim protection warranted, relief should preserve schedule, format, update, fee, and operational-review provisions to the fullest lawful extent.

The Operational Record

Cedar Commons is a finite downtown site bordered by Laurel Street, Market Lane, a public-library approach, and bus boarding areas. The paths narrow near a fountain and the maintenance entrance. Sellers unload at the curb, place temporary tents, and receive customers throughout a fair. Scheduled author programs temporarily draw people toward a reading area and, when a session ends, may produce movement toward signing tables, transit, or other vendors. Those circumstances do not imply misconduct; they are ordinary logistics that the City must anticipate.

The Guild's history supports a measured response. No record attributes violence, an arrest, or property damage to its fairs. Medical personnel responded twice to minor conditions, once for dizziness and once for a curbside fall. Employees and volunteers have addressed boxes near the service lane, vehicles lingering during unloading, and short pedestrian concentrations near the fountain or crosswalk. The absence of a major incident may reflect cooperation and preventive attention as well as the modest scale of the events.

The City does not claim that compensation predicts crowd size. It claims that compensation supplies an objective, readily verifiable boundary for an arranged program within a recurring commercial fair. After coverage is determined, actual conditions govern review. Presentation time, duration, location, expected audience, format, and equipment are the principal operational facts. Name and a brief topic label allow staff and the organizer to identify which planned slot is being reviewed and later changed.

The 2026 dates—February 14, April 11, June 13, August 8, October 10, and December 12—require separate decisions because neighboring uses, transit operations, construction, weather-related planning, and personnel availability may differ. The City permits combined delivery for convenience but reasonably refuses to treat one date's conditions as conclusive for all six.

Preliminary Relief Requires a Clear Showing

Under *Winter v. Natural Resources Defense Council, Inc.*, 555 U.S. 7 (2008), the Guild must clearly establish likely success, likely irreparable harm without an injunction, favorable equities, and consistency with the public interest. *Pashby v. Delia*, 709 F.3d 307 (4th Cir. 2013), applies those requirements in this circuit. A substantial constitutional question does not replace proof on any factor, and an interlocutory ruling should not grant substantially all relief based on predictions about administration that has not occurred.

The City does not dispute that the Guild may assert the interests of participating members at an appropriate stage. It does dispute the immediacy and breadth of several alleged injuries. No complete 2026 application has been denied for a disputed speaker. No identified author has submitted a late-change request, and no written City decision has imposed an unexplained condition. Staff have said amendments will be evaluated and that a substitute using an unchanged plan will not be charged twice.

The fixed filing date and published fee are present rules, but their existence does not prove unconstitutional application. A facial challenge carries a particularly demanding burden because the ordinance governs varied recurring events, including fairs with stages, demonstrations, equipment, or larger expected transitions. Its documented-risk, written-reason, narrower-condition, and severability provisions supply constitutional applications even if a particular late literary substitution later presents a closer question.

The Court can address a concrete implementation problem when supported by a completed record. At minimum, current uncertainty counsels against enjoining the entire ordinance or base charge. The Guild's evidence should be assessed against the actual text, which narrows topic information, forbids viewpoint review, identifies evidentiary sources, and directs consideration of a condition before denial.

The Ordinance Is Content Neutral

Coverage does not turn on what an author says. A paid reading about local history, a religious memoir, a criticism of City policy, a romance novel, or a children's story is governed by the same rule. Administrators may not seek a manuscript, ideological position, party affiliation, or anticipated public reaction. A topic field can be completed with a functional label such as "author reading and questions." Early pilot decisions involved an emergency-route measurement and a bus-area stage placement, not approval of ideas.

The distinction between scheduled compensated presentations and nonspeaking vendors is based on event structure. A vendor's incidental conversations occur diffusely and without an announced audience time. A paid program reflects an organized commitment to assemble listeners at a planned place. It is reasonable to use an objective transaction under the organizer's control to determine coverage, even though that criterion does not perfectly estimate attendance. Legislatures may draw administrable lines without proving that every person on one side creates greater risk than every person on the other.

The topic entry does not convert the ordinance into a content-based rule. Staff use the field to identify the represented activity and its format; the operative criteria remain pedestrian flow, traffic, staffing, emergency coverage, sanitation, capacity, and conflicting use. A restriction based on listeners' hostility is expressly forbidden. On this record, the purpose, text, and administration are independent of communicative viewpoint.

Because the measure is content neutral, strict scrutiny does not apply. The appropriate framework asks whether the rule serves significant interests, does not burden substantially more expression than necessary, and leaves ample communication alternatives. *Ward v. Rock Against Racism*, 491 U.S. 781 (1989). Norvale need not establish that its chosen mechanism is the single best or least restrictive option.

Significant Municipal Interests Support Advance Review

The Guild accepts that the City may protect traffic, access, capacity, and public resources. Those are not abstract interests at Cedar Commons. The site has a service entrance near the traditional reading area, a fountain-side narrowing, active curb loading, and adjacent transit. Temporary audience movement may coincide with sales and deliveries. A responding vehicle must have a usable route before a medical call occurs; a transportation supervisor must consider a crossing need before a concentrated transition begins.

Forty-five days is a reasonable uniform planning horizon. Parks staff had favored thirty days, and transportation and police participants had preferred sixty during busy seasons. The enacted midpoint usually spans completeness review, interdepartmental circulation, organizer response, and written decision preparation. A simple application may be resolved faster, but the City need not create a different filing period after guessing each matter's complexity.

The schedule assists deployment. A series of short readings can create multiple transition intervals, even if each is peaceful. Time and duration show when a crossing or bus-area conflict may occur. Format and equipment show whether the plan includes chairs, a demonstration surface, electrical supply, sound, or a line. Identity and topic provide stable labels by which reviewers and applicants discuss the scheduled activities. The City does not claim those labels themselves create risk.

Resource planning extends beyond officers. Parks employees review site placement, sanitation personnel consider event hours and expected use, fire and medical staff protect access, and transportation staff compare curb activity with bus service. The ordinance requires consulted departments to identify facts and assumptions. It then directs the permitting officer to use a condition less burdensome than denial when a reasonable adjustment will address the concern.

The Rule Is Appropriately Tailored

Narrow tailoring permits some over- and under-inclusiveness. The constitutional question is not whether an unpaid celebrity might draw more listeners than a paid poet; it is whether the regulated category reasonably advances planning without suppressing substantially more speech than necessary. The paid-speaker boundary reaches an organizer's scheduled compensated program at a recurring public event. It excludes spontaneous individual speech, private meetings, incidental sales conversations, and uncompensated speaking, while ordinary capacity and safety rules remain applicable to all.

The ordinance contains protections that materially constrain burden. It demands only a short topic label, forbids ideological inquiry, defines a documented risk, lists permissible evidentiary sources, requires review of a less burdensome condition, mandates written reasons, and makes listener hostility irrelevant. A denial is allowed only when a lawful condition cannot solve the risk, neutral reservation priority controls, capacity is exceeded, information remains missing after notice, or the organizer rejects a necessary lawful measure.

The Guild's suggested alternatives do not show the adopted rule invalid. Attendance alone omits when listeners gather. A site plan alone may not reveal program transitions. A shorter deadline may leave insufficient time on dates with conflicting demands. A material-change system still requires an initial schedule and someone to decide what counts as material. Applying presentation questions to every paid or unpaid gathering might sweep more community activity into regulation than the present objective line.

Billups v. City of Charleston, 961 F.3d 673 (4th Cir. 2020), recognizes paid speech as protected and requires evidentiary fit. It does not hold that compensation can never define an administrable licensing category or that a city must adopt every proposed alternative. Norvale's legislative record identifies actual site features, observed transitions, staff scheduling cycles, and considered alternatives. The record is more than conjecture about unpopular speech.

Late Changes Do Not Make the Scheme Unconstitutional

Section 7 expressly permits an organizer to request an addition or substitution. Staff consider whether the existing operational plan remains adequate or can be adjusted with available resources. A replacement is not automatically rejected because the filing cutoff passed. If the original speaker withdraws and the approved operational features remain substantially unchanged, the original and replacement are not both charged. Any condition or refusal must be written and cannot rest on disagreement with the person or topic.

The City recognizes that the ordinance sets no fixed number of days for a response. That flexibility reflects differences among requests. Replacing one reader in an existing slot can be straightforward; adding a demonstration, extending event hours, changing equipment, or predicting a materially larger audience may require renewed consultation. A mandatory deadline short enough for the first example could be unsafe for the second, while a longer deadline would provide the Guild little additional certainty.

The Guild asks the Court to presume that staff will treat identity-only changes as operationally significant. The declarations do not support that premise. Voss explains that her office tries to distinguish speaker-only changes from changes in time, format, attendance, location, or equipment. Pike confirms that police need the latter information and that another paid author does not automatically require another officer. Those concessions demonstrate focused administration, not the absence of a legitimate scheme.

If an actual request is delayed without reason despite an unchanged plan, targeted relief may become appropriate. The present motion instead asks the Court to displace provisions before the City has applied them to a named late author. The Constitution does not require that every amendment be guaranteed regardless of timing or resource effect. The written-response requirement supplies a reviewable decision when a concrete dispute occurs.

The Fees Reflect Neutral Administrative Costs

The base assessment addresses intake, completeness review, site coordination, circulation when necessary, communication, and preparation of a written decision. The \$45 increment addresses review of presentation timing and expected audience transitions. Financial staff developed blended estimates because actual time varies. An averaged schedule can be administrable and viewpoint neutral even when a particular file costs less than the published amount.

No evidence shows that receipts fund general advocacy, that an employee may vary an amount based on predicted controversy, or that a speaker's ideas affect the arithmetic. The ordinance credits receipts to event-permitting administration. Charges for personnel, barricades, equipment, or extraordinary sanitation must rest on separate authority and may not duplicate the fixed amounts. These controls distinguish the schedule from a variable fee based on hostile-audience expense of the kind rejected in *Forsyth County v. Nationalist Movement*, 505 U.S. 123 (1992).

The City candidly acknowledges evidentiary limits. It does not track minutes speaker by speaker, and a sixth name does not invariably consume exactly \$45 of work. But a fee need not equal a retrospective invoice for every employee minute. Reviewing an additional scheduled transition can impose marginal work, and uniform averages avoid selective valuation. The Guild's \$510 example for six authors follows the enacted schedule; it does not establish that the amount is prohibitive.

The Guild may have a limited budget, but the record does not quantify its revenues, reserves, fundraising ability, or the proportion of event expense represented by the fee. It may use unpaid speakers, seek an amendment, adjust the number of programs, or choose another suitable site, while recognizing those options may be less desirable. Financial inconvenience alone does not establish a likely First Amendment violation. At the least, the Court should not suspend the entire \$240 base amount, which compensates common event review rather than speech content.

The Remaining Winter Factors Favor the City

The Guild has not shown that a particular author will probably be excluded. Staff will review its February layout and amendments without viewpoint discrimination. A possible scheduling disappointment is not the clear irreparable injury *Winter* requires. The fees are monetary, and the Guild has not shown they prevent the fair.

Broad relief would cause operational injury. Late schedules may require revised assignments or transit measures, and an ambiguous order could leave employees unsure what information and conditions remain lawful. The equities favor neutral administration while the record develops.

The public benefits from literary activity and safe access. Norvale asks to retain its written-reason, viewpoint-neutral process. Peaceful history supports proportionate conditions, not abandonment of prospective responsibility for a constrained site.

If the Court finds likely harm, it may require prompt review of unchanged substitutions, limit topic inquiries, and preserve review of material changes. That narrower relief would address uncertainty without excising the trigger, deadline, base charge, or schedule information.

Conclusion and Alternative Scope

The Guild has raised a policy disagreement but has not clearly established extraordinary relief. The ordinance treats subjects alike, serves documented logistical interests, uses a uniform schedule, requires written reasons, and permits tailored conditions and amendments. The record's access and traffic concerns support that content-neutral system.

The Court should deny the motion. Any injunction must precisely identify the provisions restrained, six covered dates, permissible information, and event-specific conditions. It should preserve reservation priority, capacity, emergency access, loading, traffic, transit, sanitation, accessibility, insurance, equipment, and material-change requirements.

Any order should preserve collection of time, duration, location, format, expected audience, and equipment information, plus notice of material changes and documented conditions. The \$240 base charge covers common processing. If only the speaker increment is suspect, relief should be confined to that charge.

Finally, the Court should expressly determine security under Rule 65(c). Norvale proposes no figure now but requests an opportunity to address measurable costs if broader relief is contemplated. Respectfully submitted January 14, 2026; same-day electronic service is certified.